RESEARCH REPORT | NAIROBI COUNTY, KENYA

Women in Middle Level Business

Challenges and Opportunities for Combating Systemic Corruption

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Published by
Citizen Advancement Initiative (CAI)

Supported by the Ford Foundation

2021

PUBLICATION INFORMATION

This magazine-style edition is formatted from the supplied CAI study report. The report's substantive wording and findings have been retained; layout, typography, spacing and navigation have been enhanced for print submission.

REPORT DETAILS

Title: Women in Middle Level Business: Challenges and Opportunities for Combating Systemic Corruption

Study location: Nairobi County, Kenya

Author: Meda Benard Othero

Publisher: Citizen Advancement Initiative (CAI)

Year: 2021

Funding: Supported by the Ford Foundation

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FINAL REPORT

Case Study: Nairobi County.

** ** ** **

Study by CAI

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2021

Published by

Citizen Advancement Initiative

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With funding from

FORD FOUNDATION

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ACKNOWLEDGEMENT

CAI is grateful to the Ford Foundation for funding this study on gender and corruption. Our appreciation goes to Ms. Linda Ochiel for her strategic guidance and contribution to the study concept note; Enreal Limited's Consultancy for facilitating the study through the Nairobi Businesswomen SME Think Tank, which participated in the series of the study's focus group discussions; and Mr. David Makali for invaluable research advice and editorial services.

We are indebted to Transparency International for providing statistical data to the study and Mrs. Jacque Wasswa for supporting the study through financial budgeting and administration throughout all the phases of the research.

The research was conducted by Mr. Benard Meda (Principal researcher) assisted by Ms. Felgonah Oyuga and Ms. Atieno Rebecca.

FOREWORD

This research was designed to explore the cause-impact of systemic corruption on middle level businesswomen in Nairobi and the role they can play in fostering a favorable business environment and combating endemic corruption in Kenya.

It was premised on the understanding that unless systemic graft is eliminated, economic empowerment policies meant to mainstream women in business and reduce poverty are unlikely to yield the expected results.

Citizen Advancement Initiative (C.AI.), a non-governmental organization involved in research and advocacy for good governance, conducted the study. It partnered with Enreal Consultancy, to facilitate focus group discussions with Nairobi Businesswomen SME Think Tank, a progressive group of women entrepreneurs. The Ford Foundation funded the study.

Meda Benard Othero | Executive Director | Citizen Advancement Initiative

ABBREVIATIONS

DCI Director of Criminal Investigations

EACC Ethics and Anti-Corruption Commission

IG Inspector of General Police

KEPSA Kenya Private Sector Alliance

KNCC Kenya National Chambers of Commerce

MSIAC Multi-Sectorial Initiative Against Corruption

ODPP Office of the Director of Public Prosecution

SMEs Small Medium Enterprises

T.I Transparency International

EXECUTIVE SUMMARY

This study sought to explore how women in the business sector in Nairobi contribute to, experience, and respond to the fight against corruption. There was no better way of doing this other than involving women in business themselves in an action research. Many studies have identified a correlation between gender and levels of corruption in the public sector. But whereas research has also shown that the impact of corruption is highly gendered, there is limited research and knowledge on middle level businesswomen and their experience or response to systemic corruption in Nairobi County.

The essence of the study was to establish the perception of corruption by women in middle level business; determine the level of awareness of anti-corruption efforts, policies and institutional frameworks for fighting corruption; Identify strategies to empower middle level businesswomen to combat systemic corruption that undermines their businesses; and eventually recommend ways in which middle level businesswomen can meaningfully participate in the anti-corruption crusade

The study employed a variety of mixed research methods whereby qualitative research method was highly used to unravel the challenges experienced by women in middle level businesses against the backdrop of endemic rise of systemic corruption in Nairobi and Kenya at large. Qualitative research method was further used to develop research tools to gather data using open-ended questionnaires, Focus Group Discussions guide and non-probability interview targeting key informants and institutions. On the other hand quantitative research method was used to determine the sample size, data analysis and data presentation of the gathered information from the research findings.

The study findings indicate that due to systemic corruption in the registration and certification process 65% of women in Middle Level Business are operating unregistered businesses. Due to the challenges involved with running unregistered business, 76% of the women in middle level business admitted to having not accessed public services hence negatively impacting on the operational cost of their business.

Study findings further indicate that 85% of the women in middle level business are not aware of the existing policy, legal and institutional frameworks to fight corruption. This is so due to limited push back platforms to train, inform, and organize women in the fight against corruption. In fact a majority of the women responded to having never attended any workshop on anti-corruption trainings.

Indeed the government of Kenya has expressed the political good will to fight corruption by jointly establishing a Multi Sectorial Initiative Against Corruption (MSIAC) to combat the endemic rise of systemic corruption with Kenya Private sector Alliance (KEPSA). Unfortunately so the initiative lacks proper internal structures to mainstream women in middle level business into the fight against graft. In fact, research findings point out to the fact that the initiative is already dead due to lack of proper funding coupled with internal wrangles and politics from the government, private sector and civil

society organizations. This then renders a big blow to women in middle level business since MSIAC proved to be the only push back platform for them to contribute to the fight against graft.

The study realized that emerging coalitions that fight graft are yet to absorb the linkages between gender and corruption, also, the tools used to fight graft are not supportive of women's engagement, mostly more emphasis has been on civil disobedience which put women at greater risks, since many at times the authorities resort to violence when dispersing such movements. Lack of sufficient resources both monetary and non monetary, to offer anti corruption capacity building programs through trainings and advocacy programs remains the sole reason why emerging coalitions periodically resort to civil disobedience.

Women in middle level business strongly believe that the policy, legal and institutional frameworks in place to combat graft are inept. The women are making such assertions besides the fact that 85% of them are not cognizant of the existing anti-corruption instruments. To counter their ignorance of the existing laws the women elude that had the instruments been strong and effective they would be felt and known without having to struggle.

Lack of sufficient information, knowledge, skills and push back platforms are some of the major reasons and challenges as to why women in middle level business are not effectively contributing to the fight against systemic corruption. To the affirmative a majority of the women acknowledged that the only tool for fighting graft was public demonstrations. However, lack of sufficient skills, tools and avenues to fight graft have led the women in middle level business to use the digital space such as twitter to fight graft through whistle blowing on any acts bordering corruption. They also use their smart phones to capture and adduce evidence

The study realized that women in middle level business have developed a perceptional thought that paying a bribe is not a crime but receiving a bribe is what ought to be criminal. In fact 63.1% contend to having paid bribes for the survival of their businesses. They also have a very strong perspective that the endemic rise of systemic corruption is not being resolved and that is why their business must have standing orders to pay bribes,

Women in middle level business in Nairobi are more than willing to contribute to the fight against graft but only if proper push back platforms to empower and protect their efforts are put in place through training, capacity building programs as well as legal protection channels.

Some of the recommendations proposed by the women in middle level business to engender their contribution to the fight against systemic corruption include; Regulatory approaches for middle level business; mainstreaming women in middle level business into the emerging anti – corruption push back coalitions; Binary engagement and dialogue with government agencies; Establishment of pressure groups highly composed of women in middle level business to contribute to the fight against systemic corruption.

Equally important in the fight is the renewed commitment of the Governments of Kenya to fight corruption. This creates an opportunity for diverse voices to engage in the design of anti-corruption strategies and participate more meaningfully in the national discourse on the fight against corruption. However, women's relative lack of political and economic leverage reduces their ability to demand accountability or to highlight their specific experiences of and concerns about corruption. Their voices are thus largely absent or fragmented in the national discourse on corruption.

To conclude with the anticipated outcome of this action research study is to inform anti-corruption strategies from a gendered perspective as well as develop response strategies that would build the agency of and empower middle level business women to meaningfully engage in the ongoing fight against corruption taking advantage of the current political will from the Kenyan government and the public. Action research provides the best path way for these women to begin getting involved in anti-corruption crusade and campaigns.

CHAPTER 1

1.0 Introduction

There has been limited research and knowledge involving middle level businesswomen, their engagement, experience and response to systemic corruption in Nairobi County. The study was therefore conducted to provide considerable information on the issue of gender and corruption with many evidence-based insights, conclusions and recommendations on the topic being made.

Many studies have identified a significant and meaningful association between gender and lower levels of corruption within the public sector that which the study was set to find out. A synopsis of the findings indicate that Kenya continues to sink lower in all corruption perception indices, placing in the bottom quarter of countries surveyed by Transparency International over the last five years. According to the last ranking, Kenya scored 28%, taking position 137 out of 190.

Despite concerted official efforts and proclamations, an audit of Kenya's legal and institutional framework reveals its inability to tame systemic corruption. A combination of weak institutional frameworks, inconsistent law enforcement and flagging political goodwill has allowed corruption to flourish. Pundits also aver that the sanctions against convicts are too weak to deter corruption

This study objectives sought to establish the current situational analysis of women in middle level business and their interaction with corruption in Nairobi with a focus in public service delivery in informal settlements; Explore how women in middle level business in Nairobi contribute to, experience, and respond to the fight against corruption in Kenya through women's own lenses; Recommend strategies and interventions for women's response and meaningful engagement in the fight against corruption in Kenya.

The study's target audience was highly women residing in Nairobi operating middle level business that largely revolve around or depend on public service delivery emanating from both the County and National Government.

Nairobi County formed the basis of the study are for reasons that it is the most populous County in Kenya, according to the 2019 census. It hosts a population cover of 4, 397, 073 people accounting for 9.2 per cent of the country's total population, with women accounting for 2,192,452 population cover.

It is evident therefore that Nairobi hosts massive Women in the informal settlements and that alone justifies why the organization decided to limit its jurisdictional area of study to Nairobi County. Also putting into considerations that it is the capital city of Kenya, there is a strong perception that it is the epic center of systemic corruption in Kenya.

Cluster study areas included informal settlements within; Embakasi, Kasarani, Njiru, Dagoretti, Westlands, Kamkunji, Starehe, Mathare, Langata, Makadara and Kibra.

The scope of the study covered nine-months all the research happening in the midst of the COVID – 19 pandemic between the months of May 2020 to January 2021

1.1 Systemic Corruption?

Government – comprising the Executive, Legislative and Judiciary - is a coordinated system. Dysfunction in one arm affects the performance of the others. Therefore, if not checked, corruption in one arm of the government has the potential to infect the entire system, hence resulting in systemic corruption.

In Kenya, corruption is deeply entrenched in the social fabric and political structure of government. It is manifest in public institutions, public service and private entities. It cascades into the ordinary citizen's day-to-day behavior.

The Kenya Anti-Corruption and Economic Crimes Act, 2003, defines corruption as the abuse of public office for private gain through bribery; fraud; embezzlement or misappropriation of public funds;

breach of trust; or any other offence involving dishonesty. There are also variants of corruption classified by forms, dimensions and degree - petty, grand or systemic.

Systemic corruption tendencies in the Kenyan context include bribery, kickbacks, extortion, favoritism, rent-seeking, embezzlement, manipulation, nepotism and sexual favors/exploitation.

It becomes systemic when corruption is normalized and considered as a way of life by public officials and public institutions routinely consider it as normal in the processes of government or service provision.

Systemic corruption in Kenya is symptomatic of maladministration by the State that has dire consequences and impact on public service delivery. It tears down a country's social fabric and, worse, has the potential to cause political instability ala Tunisia, where demand for a bribe by a municipal official from a frustrated graduate trader provoked him to self-immolate and spark a revolution.

The Tunisian revolution is often blamed on the public official but a deeper analysis points out to a protest statement against the endemic rise of systemic corruption in the Tunisian Civil Service.

Systemic corruption stems from political expediencies and legal manipulation of policies, institutions and procedures in nearly all facets of government to favor a few.

Middle Level Business

In Kenya middle level business account for 81.1 per cent, of the economic sector, approximately 6.3 million persons depend the middle level business sector. Women account for 31.4% of the sector whereas men account for 47.9% an indicator of male dominance in the economic sector. To further break the statistics down, the livelihoods of 27.8% of Nairobi's population are hinged on middle level business.

The conceptualization of women in Middle Level Business in Kenya is clustered under the Small Scale Enterprises (SME), under which according to the Kenyan Trade policy, the sector is the major pinnacle for poverty reduction and job creation. Women's empowerment is therefore highly hinged on the sector through various economic affirmative action plans ranging from global, continental and national policy frameworks.

The legal provisions of Kenyan Micro and Small Enterprise Act, 2012 require middle level business to undergo registration and certification procedures before they commence operations; must have proper books of accounts for audit purposes and pay taxes in return. The other key feature of middle level business includes a turnover range that is between five hundred thousand to five million Kenya shillings; and employ's between 10 – 49 people.

The study found that 79.3% of women in middle level businesses in Nairobi operate sole proprietorships. This partly explains why they are vulnerable to corrupt public officials and scarcely able to influence both policy and institutional frameworks unlike multinational corporations. This informs the need to create a platform for joint actions such as advocacy against endemic rise of systemic corruption. The remaining 20.7% limited liability companies are likely to engage in proxy partnership to utilize the government's affirmative action programs.

It is out of compliance to the provisions of the Micro and Small Enterprise Act, 2012 that women in middle level business start experiencing and engaging in the prevailing acts bordering on systemic corruption.

" I have been in business for the last 15 years but in legal operation for only two years, compliance to registration and certification procedures have been a challenge to my business for almost a decade – Anonymous.

CHAPTER 2

Methodology.

The study employed a variety of mixed research methods to unravel the challenges experienced by women in middle level businesses against the backdrop of endemic systemic corruption in Nairobi and Kenya at large.

Information was gathered using open ended questionnaires, Focus Group Discussions and non probability interviews targeting key informants and institutions, among them Transparency International's Titus Gitonga, and Enreal Limited Consultancy.

Participants of the Focus Group Discussion held at Sankara Hotel courtesy of Citizen Advancement Initiative, Enreal Limited Consultancy and Nairobi Business Women Think Tank.

Study Area

The study was limited to Nairobi County, the most populous county in Kenya according to the 2019 census with a population of over 4, 397, 073 people (9.2 per cent of the country's population, with 2,192,452 being women). The study cluster areas included Embakasi, Kasarani, Njiru, Dagoretti, Westlands, Kamkunji, Starehe, Mathare, Langata, Makadara and Kibra.

The study affirmed that Nairobi hosts massive Women in the middle level business sector and therefore there was a strong justification and validity for the organization to limit its jurisdictional area of study to Nairobi County. Also having in view that Nairobi is the capital city of Kenya, there is a strong perception that it is the epic center of systemic corruption in Kenya.

Key Informant Interviews

The target respondents were women engaged in the middle level business that largely depend on supplying goods and services to the residents of Nairobi including both the county and national government

The action research embraced field research techniques and content analysis both emanating from primary and secondary collection of data. The data was generated through participatory methods, which included field visits to the business premises where respondents were interviewed through an open-ended guiding questionnaire. And further organization of focus group discussions.

Target respondents were not limited to women in middle level business but included non- state actors and government officials from public authorities.

The study therefore sampled 50 women in middle level business clustered into sets of ten during the focus group discussions to adhere to the COVID 19 regulations that limited gatherings to not more than 15 people. Hence, the study was divided into five focus group discussions with a cluster of 10 discussants in each forum. An additional 50 women were sampled through questionnaire interview guide, which brought the total number of respondents to 100 women operating middle level businesses.

Study Limitations

Taking into consideration that corruption is a very sensitive vice in our societies the study endured a lot of challenges during data collection. Fast forward, most of the respondents were very concerned about non-disclosure of their identity on the responses provided by them. Quite a number of respondents were nervous, scared and emotional leading to their concern of witness protection incase the report placed on the spot their experience and engagement in acts bordering systemic corruption. Coupled to the nervousness the respondents were very discreet with the information provided. This then forced the study to limit quoting the identity of the respondents to uphold witness protection.

The Covid 19 pandemic also highly affected the study to the extent that it was not possible to conduct face-to-face interviews at the onset of the study. However, the research team was quick to adopt into digitalization frameworks like Skype, Zoom and Google meetings as a tool of collecting data, which worked quite well. As a down side, it proved challenging in that some meetings failed to take off occasioned by connectivity challenges.

The other challenging experience was that reputable organizations and key informants could not define or rather did not understand the dichotomy between corruption and systemic corruption. Further they could not comprehend the nexus between gender and corruption but rather spoke to the abstract debate of grand corruption that carries the headlines on a day-to-day basis. This then informed the study of the need to inform key organizations and informants that corruption can be dichotomized into various operationalization terms ranging from petty, grand and systemic; and that corruption is not just corruption.

CHAPTER 3

INTERSECTIONS BETWEEN GENDER AND CORRUPTION

Key Findings

Knowledge, Perceptions, and Attitudes on corruption

The study noted that societal reward on corruption is highly prevailing which then begs for an array of significant questions. What is the general definition of corruption according to women running businesses in Kenya? Does she recognize corrupt practices? Does she (know where to) report corruption? Does she understand repercussions of reporting corruption and the protections under the law?

The preceding paragraphs holds answers to the above questions;

Knowledge on women and corruption

Enduring inequalities in Kenyan society have rendered women the beasts of burden for families or communities, forcing them to venture into income generating activities such as trade for their own survival and the welfare of dependents. Conversely, women are also a minority in leadership positions or positions established to fight corruption. The other factual knowledge that does exist is that women represent the poor majority and have more to lose from corrupt practices such as misuse of public funds. Corruption is a social danger.

Middle level business women's knowledge on corruption is that it imperils opportunities for them and

true to the study findings indicate that women own 31.4% of middle level businesses in Kenya whereas 47.9% middle level businesses are owned by Men, this therefore indicates that women as a gender continue to lag behind in the economic facet of the Kenyan society.

The study found that 85% of women in middle level businesses are not aware of the existing institutional and policy initiatives to fight corruption. They only know of the two lead institutions - Kenya Police and the Ethics and Anti Corruption Commission – of which according to their self-assessment are quiet inept and the applicable laws in place to combat corruption need to be strengthened. Incidentally, a comparative analysis shows Kenya's anti-corruption laws to be more stringent as per the Africa Union's Convention on Preventing and Combating Corruption, although they have failed to deter systemic graft.

The study also found out that a vast majority of the women in middle level business clearly understood what corruption is and were able to define the vice as an act of engaging in dishonest activities for private gain however their definition and understanding was limited to public officials, they recognize corruption as the demand for bribery by public officials but fall short of recognizing the other spectrum of corruption that is driven by the demand for a favor to a service by the private citizen. Majority of the women in middle level business knowledge is that giving a bribe is not a crime but considered receiving a bribe as criminal.

Limited knowledge on corruption laws has paved way for normalization of corruption as a way of life not only in Kenya but within the East African Community which was brought to fore by a study conducted by the Aga Khan Foundation in 2018, which found that youth in EAC do not see anything wrong with it.

According to the study, 58% of youth from Tanzania believe that it doesn't matter how one makes their money as long as they don't go to jail; 55% of the Ugandan youth admire those who make money by all means, while 30% believe that corruption is profitable. On average, 40% of the youth in all the EAC countries are okay with giving a bribe. Note that these statistics include women and mirror the reality of corruption in the society.

Unfortunately, very few women in middle level have the knowledge of reporting corruption that then means most graft activities go unreported. The existing reality to the vast majority of the women was that the existing reporting structures are quite inept to warrant criminal action by the responsible authorities and lacked protective safeguards such as witness protection mechanisms to the whistleblower, hence their reluctance in reporting corruption.

“When you go to report corruption to the relevant authorities, you are held hostage in the name of state witness whereas the accused is left to walk freely pending investigations.” - Anonymous

The existing knowledge from the study is that government contracts, should be source of considerable and sustained growth for small and medium enterprises, however they are less accessible to female entrepreneurs due to corrupt procurement systems that require bribes and kickbacks to public officials. Complex systemic corruption is a barrier to the achievement of numerous affirmative action policies meant for women’s advancement.

Perception Of Women On Systemic Corruption

We live in a society that has high societal reward of corruption and unlawfully gained wealth and a culture that highly values corruption. However, it has been argued that women are less corrupt because, by their nature, they are not big risk-takers like men, however not an exemption from engaging in systemic corruption.

Since corruption is a social danger a vast majority of women in middle level business have a negative perception on corruption and their take was that systemic corruption destroys a future, by discrediting honest businesses, makes businesses expensive to operate by driving up the cost for women tax payers; eventually discouraging accountable investments. It allows predators to move in and take advantage of women in business.

A majority of the women in middle level business strongly believe that corruption is inevitable in the business sector. There are those whom believe that corruption is unspoken word what would be called the normalization of corruption.

Slightly below half (46.9%) of those who offered bribes admitted to having gotten services in a timely manner, hence corruption benefitting their business. Some have standing orders for bribing public officials and institutions to facilitate their businesses in a timely manner. A minority (28.1%) felt frustrated that despite paying the bribe, they did not procure the services they sought, whereas a whooping 71.9% attested to the fact that paying bribes protect their businesses.

Gendered Attitudes Towards Systemic Corruption

The global attitude for empowerment of women in all spheres of life now requires mainstreaming of gender in all policy and administrative undertakings. Specifically, the UN’s Sustainable Development Goals (Principle 5) and the African Union’s Agenda 2063 (Principle 6) target to eliminate inequalities that inhibit women’s advancement in all spheres of the society.

A majority of 61.3% of the respondent women in middle level businesses admitted to having paid a bribe to get a service. During the focus group discussions, a majority of them were not aware of the existence of the Kenyan Bribery Act, 2016 that provides for the prevention, investigation and punishment of bribery. The women believed that giving a bribe is not a crime but receiving a bribe is what should be considered criminal.

The 38.7% who said they have never paid a bribe even when presented with an opportunity attributed their stance to moral consciousness as opposed to adherence to the Bribery Act, 2016. Hence, the study concluded, more investment should be directed to enhancing ethical business based on moral values rather than mere observance of the law.

According to statistics, 60% of the public officials confidently ask for a bribe, while 40% of women in middle level business in Nairobi willingly (feel obligated to) bribe even before they are asked.

There is some ray of hope though, with 73.3% of the respondents saying they had refused to give a bribe when asked, even at the risk of victimization. The study reinforced the perception that women are more resilient and less enthusiastic in offering bribes than men. The remaining 26.7% admit to having parted with a bribe because they had no option to get the services needed.

More than half of the respondents (56.7%) said they had felt the need to report activities bordering on corruption but could not because of lack of reporting procedures. Those that reported, a majority of them reported to Police stations whereas the rest believed that social media was the best platform to report corrupt activities. The 23.3% that fail to report do so out of fear. Many are unaware of the existence of the Witness Protection Act, and those who knew do not trust the mechanism for protecting witnesses.

For an inclusive recovery the study finds that businesswomen can be pivotal by leveraging on their strength as less corruptible if mainstreamed in the planning and implementation of anti-corruption strategies. Gendered inclusivity and diversity breaks corrupt networks and stand a chance to make a great difference in preventing corruption.

Chapter 4

PART I

Corruption in the Eyes of Women's Experiences

While endemic corruption affects everyone in society, women, as custodians of the family unit, are perceived to bear the heaviest social burden. Apart from the social impact of corruption, women in middle level business are increasingly now forced to leverage on systemic corruption for their own survival and the success of their businesses through engaging in acts bordering systemic corruption. In every ten women in middle level business six have experienced systemic corruption in the public sector when procuring services.

Affirmative action policies for women's economic development in Kenya have largely focused on opening up and expanding the economic space. But it has failed to secure a favorable business environment and address the negative impact of systemic corruption on women enterprise. Which has then resulted to 64.7% of unregistered middle level businesses belonging to women. In Nairobi County where the study deeply focused on, the findings were that unlicensed business accounted for 12.8% with most of the businesses belonging to women in middle level businesses.

"He told me that I was too pretty to be queuing for the certification services, and all that I need to do to avoid going through the tedious process is let him have my number for my registration processes to be seamless." - Anonymous

The study further realized that women are seen as easy targets for physical and sexual harassment; women frequently pay large sums to avoid extended dealings with corrupt officials. Complex and costly business registration procedures also create opportunities for corruption and bribery, which disproportionately affect female business owners as they are likely to be as less mobile than men, or to have the time, money, and contacts needed to navigate such requirements.

A vast majority of the women in middle level business informed the study that corrupt public officials are not interested in monitoring compliance to regulatory standards, but the demand for a bribe is what drives them to inspect business premises.

Since a majority of the women in middle level businesses in Nairobi operate sole proprietorships they have become vulnerable to corrupt public officials due to the nature of their businesses. Corrupt public officials target individual enterprises because they lack a powerful voice to detest bribery unlike Multi national corporations that have the ability to call for action.

"In my ledger book of accounts I have a standing order for corrupt public officials whom pass by on a weekly basis to collect bribes. I have no option but to commit to the bribes for the survival of my business. " Anonymous.

Women in mid-level business are susceptible to systemic corruption because it is part of the ecosystem and often a pre-condition for procuring business. If you need a business license, a specific permit or certificate, the options are stark and limited: Pay a bribe to expedite the process or wait out and endure the frustration.

But women are not always the victims in the web of corruption. In some instances, they are active participants, perpetrators, initiators and masterminds of corrupt schemes designed to propel them to success – just like their male counterparts – in the cut-throat business environment.

For female entrepreneurs, their gendered experience of corruption is an obstacle to profitability and prevents them from achieving their full economic potential, hence the urgent need for a strategic response in the fight against systemic corruption in Kenya.

Unwilling accomplices or masterminds? Women experience with systemic corruption

Women in middle-level business engage in corruption involuntarily, the study revealed. Many women in business are trapped by a systemic web of corruption over which they have no control. Focus group discussions (FGD) showed that women are aware of what constitutes corruption but find it an inevitable action for doing business. They either pay bribes to get services or shun and suffer delays or lose the business altogether. They are easy targets and endure physical and sexual harassment in the process of doing business.

As a consequence, a number of governance initiatives are inquiring into the phenomenon of business, corruption and gender. Women represent 31.4 per cent of the middle level businesses in Nairobi, compared to 47.9 per cent owned by men. Furthermore, 60.7 per cent of unlicensed businesses in Kenya are run by women, owing to endemic corruption in the registration process.

According to Transparency International, and from the findings of the study: A vast majority of the women in middle level business face;

Petty corruption: This primarily occurs in service delivery sectors and may comprise bribery at licensing offices like company registry or county offices or “sextortion” of women who resort to sexual favors in exchange for services.

“I have had the opportunity to pay a bribe in order to get a service but I turned down the offer due to my moral conviction” – Anonymous

While there are women who totally refuse to engage in corruption, others have opted to “play ball” to survive in the toxic web of corruption. Still, there are others who exploit their femininity to get away with anything without parting with a bribe. Either way, the sum total of their experience is that corruption has negatively impacted on women more than men, with 76% of women respondents indicating it has hindered their access to public goods and services.

“Women are subjected to monetary bribes or solicited for sexual favors in exchange for employment or operating a business, hindering their ability to earn income and/or sustain their businesses” – UN Global Compact on Anticorruption and Transparency

In the case of women dealing with government procurement agencies, the decision not to partake of corruption is often costly to the business. It means unnecessary delays and sometimes humiliation by corrupt officials who take them round in circles. Desperate, they accede to corruption as a survival strategy to secure their investments, or venture into informal entrepreneurship without the requisite certification from revenue collecting agencies such as Nairobi Metropolitan Services, the county government, and the Kenya Revenue Authority.

“Women’s statistically have lower literacy levels, which often result in a relative lack of knowledge of rights and entitlements to services and public programmes, leaves them more vulnerable to extortion and abuse of laws”- UNDP, 2008

A study by ILO on women entrepreneurs in Tanzania and Uganda found that the cost of registration and high taxation were the main causes for noncompliance by many businesses.

Even when they are not participating in it, women are the first casualties of corruption. Misuse or misappropriation of public funds affects reproductive health (by depriving women of maternity services), markets for trading, and malnutrition of their children due to misappropriate of funds.

Corruption is also embedded in the bureaucracy. The focus group discussion revealed that six out of 10 women had contacts of public officials responsible for certification or other requirements for winning government contracts. Such contacts are mainly necessary to bypass regulations and obtain business licenses conversely evade complex legal requirements for registering companies.

These findings fly in the face of the international conventions, which Kenya has signed up as commitment to fight corruption and address gender inequality.

Respondents ranked the Nairobi county government, Kenya Revenue Authority, Police and the Judiciary as the key institutions entangled in the intricate web of systemic corruption in Nairobi.

Women involvement in corruption

The conventional belief globally is that women are less corrupt than men. This is attributable to the historical marginalization of women in governance, public and private spheres. However, with affirmative action measures to ensure equality and equity of women's participation in both private and public life, research shows women have joined the mainstream networks of systemic corruption in Kenya, commonly referred to as cartels.

Women empowerment policies and legislative frameworks include the Public Procurement and Disposal Act, 2016, that women have exploited to register over 180,000 businesses to access special funds.

While such provisions appear godsend for the marginalized women, it is also the avenue through which they are ensnared into corruption to secure tenders through uncompetitive means in return for kickbacks. They pull all stops to qualify and win lucrative tenders, including oiling systemic corruption, the study found out.

Out of the twelve most publicized graft cases for the last four years, women in middle level business feature prominently - National Youth Service I (2015, Sh1.9b); National Youth Service II (2016-17), Sh9b; NCPB (2018, Sh9b); Afya House (2016, Sh5b); Youth Enterprise Fund (Sh18m); COVID-19 (2020, Sh21b).

It's Kabura season 2 ~~~

She does not have an office!!

She did not tender for anything!!

She did not supply anything!!

She does not know of what she is supposed to have supplied!!

But she was paid Sh60 million. - Daily Nation, May 24, 2018.

In all the above graft cases, companies headed by women were used as conduits to siphon funds. They were backed by powerful entities and personalities that exercise and abuse State power.

Thus, while women are being accorded more opportunities in politics and business, they are also being lured to the frontline of corruption as facilitators of corruption or masterminds. In some cases, they are used to register businesses whose main beneficiaries are men.

It is evident that national laws and international conventions advocating for women empowerment are being manipulated to promote, entrench and perpetuate systemic corruption through co-opting women in business.

A survey conducted by the Ethics and Anti- Corruption Commission in 2017 found that 62.2% of the Kenyan population continues to pay a bribe in exchange for government services. Out of that, 45.6% of the respondents who paid the bribes were satisfied with the services provided. This, despite the existence of the Bribery Act, 2016.

Women in middle level business in Nairobi admit to being compelled to bribe for quicker services from government officials and agencies. Unfortunately many consider it an enabling norm rather than exception in the prevailing business environment where corruption thrives in the place of effective and efficient service delivery.

Among the women sampled, 70% say that participation in corruption was not voluntary. They found the system in place and only played along. In Nairobi County, for example, there is a unanimous belief that you must have an insider for your license to be processed on time. If you do not conform to the practice, you are likely to be subjected to unnecessary harassment from arrest of employees to

closure of business premises.

Besides bribery, other forms of corruption reported include unwanted sexual advances and use of well connected bureaucratic networks either in private or public sphere to solicit favors; political patronage to access opportunities such as the Women Development Fund or protection from frustration by public officials.

“ Ending all discrimination against women and girls is not only basic human right, it’s crucial for sustainable future; its proven that empowering women and girls helps economic growth and development.” - SDG, Principle 5

Gendered Impact of Systemic Corruption to Women in Middle Level Business

Women’s businesses are far more targeted for bribes and informal payments at higher rates than men’s businesses hence inhibiting gender inequities limiting women’s businesses advancement

The high demand for bribery and unwanted sexual advances is forcing women in middle level business to operate unregistered and unlicensed businesses, hence hindering their businesses from qualifying for financial security support from financial institutions such as banks.

Systemic corruption in Nairobi County has created economical barriers to women’s entrepreneurial success hence impacting socio economic burden to women in middle level businesses within and around Nairobi County.

The web of systemic corruption within Nairobi has rendered women to unequal access to markets and public service delivery opportunities. Women are denied market spaces to the advantage of men, thus stifling women’s advancement with rising inequality in the business sector.

For Nairobi female entrepreneurs, their gendered experience of corruption is an obstacle to profitability and prevents them from achieving their full economic potential, hence the urgent need for a strategic response in the fight against corruption in Kenya.

The study seriously notes that the above listed gendered impacts on the endemic rise of systemic corruption in Nairobi county calls for a newly awakened and galvanized push for women in middle level business to develop interventions and design solutions that will contribute to stopping the negative gendered impacts creating barriers to women realizing gender equality within the business sector by accessing their socio economic rights within Nairobi County.

PART II

Gendered Response to Systemic Corruption

The recently renewed commitment by the Governments of Kenya to fight corruption creates an opportunity for diverse voices to engage in the design of anti-corruption strategies and participate more meaningfully in the national discourse on the fight against systemic corruption. The most fundamental questions to the study had been what are the entry points for women in middle business to contribute to the on going fight against corruption.

However, the study acknowledges that women’s relative lack of political and economic leverage has reduced on their ability to demand accountability or to highlight their specific experiences of and concerns about corruption. Study findings indicate that women’s voices are thus largely absent or fragmented in the on going national discourse on corruption. The absence of definitive women’s voices in the current anti-corruption crusade in Kenya is more worrying, more so when the voices of women entrepreneurs lacks at any level but worrying enough silent.

Lack or limited response to the fight against corruption by women in middle level business has largely been necessitated by incapacitated push back platforms that lack sufficient funding to initiate sustainable anti corruption programs. A quick audit by the study on the existing push back coalitions, the study was quick to note that many of the initiatives such as: Multi-Sectorial Initiative Against

Corruption driven by the private sector is now defunct due to lack of administrative funds, hence the disbandment of the anti corruption initiative. Politics and supremacy contest form member coalitions stakeholders also greatly contributed to the disbandment of the initiative.

“We were all given letters that our contract had ended, reason being lack of funds. They didn’t reach out to us so I guess they didn’t get enough funds. “ – MSIAC liaison

However coming from the government side all is not lost since the EACC has a program under the Kenya Leadership Integrity Forum that trains Kenyan citizens on anti corruption measures on ethical and integrity standards. Women in middle level business therefore, stand a chance to be plugged into the integrity programs to build on their capacity to handle and tackle the endemic rise of systemic corruption within Nairobi.

Good Governance Coalitions run by Transparency International’s Advocacy and Legal Advice Centers at county level; among other civil society led movements such as Chapter Six Working Group; Kenya Tuitakayo and Bunge la Wananchi; or Regional Economic Blocs (Lake Region Economic Bloc (LREB), Nyanza, Frontier Counties Development Council (FCDC), Coast, Mt. Kenya and Aberdares Region Economic Bloc, Central, South Eastern Kenya Economic Bloc, Eastern, North Rift Economic Bloc (NOREB), largely speak to and focus on anti corruption debates under the pillar of good governance but fall short of sustainable gendered programs to engage in tackling corruption both at the county and national level.

Besides lack of gendered push back platforms, a good number of women informed the study that they were not ready to take the risk of preventing corruption at a personal level due to fear of victimization by the “cartels”. A synonym that identifies and gives reference to an alliance of public officials whom are out to protect and engage in illegal activities bordering on corruption for private gain at all cost, cartels can go all the way to safeguard their interests and activities through unconventional means which then explains the fear instilled on women in middle level business and the general public at large to engage in the fight against corruption.

The Role of Businesswomen in Preventing Corruption

The rising numbers of Women in middle level businesses have the ability to organize and conduct sensitization programs on their own or in partnership with various anti–corruption agencies, among businesswomen or general public.

However, such efforts will be futile without transparent systems and procedures for reporting corruption. From the experience of private sector platforms such as Nairobi Business Community, accountability in public institutions is enhanced by displaying service charters and publicizing channels for reporting corruption.

Middle level businesses are well placed to influence change through table banking groups, decision makers, business community networks, NGOs, CBOs, youth organizations and faith based movements, among others. These networks can in turn train, empower and partner with their clientele or state agencies to combat corruption by tackling the structural forces which give rise to systemic corruption.

“It can therefore be said, that countries that have greater freedom, an established democracy and support gender equality show better results in corruption indexes. The core values of democracy and gender equality are therefore fundamental to reducing corruption.” – UNIFEM & UNDP

The women can further play a role of pacifying enablers or victims of the corruption chain; by impacting moral ethical values on the culprits in the relationship between public officials and women-led businesses

Challenges faced by businesswomen in responding to corruption

In view of the fact that women in middle level business are yet to sufficiently harness their collective push to the fight against corruption. The study was able to observe that the challenges hampering their efforts into the fight are as follows:

Most women-owned enterprises in Nairobi are too small and fragmented to tackle systemic corruption alone unlike big multinational companies. The primary focus should therefore be on creating a platform under which women in middle level business are collectively harnessed and consolidate to have a unifying voice against the endemic rise of systemic corruption.

Lack of information by women in middle level business on the existing legal and institutional frameworks established to facilitate the fight against corruption has deeply reduced women's involvement and response to the fight against graft.

Women professionals and entrepreneurs are a minority in leadership positions established to fight corruption within Kenya hence the lack of a gendered diagnostic approach to contribute to the fight on the endemic rise of systemic corruption.

Lack of deepened technical assistance to women in middle level businesses by the existing push back platforms on the existing reporting channels and structures for fighting systemic corruption, has curtailed women entrepreneur response to corruption.

Too much reliance on the law by the women in middle level business other than reliance on moral values and consciousness, towards a culture of integrity.

Lack of a tactful and sustainable strategy by the Women in Middle Level Businesses on how to combat systemic corruption within the business sector.

Undermining of the already existing humble efforts being shown by women to tackle corruption; by the government and a patriarchal society, thus discouraging women's effort to contribute into the fight.

Abortive efforts by the Kenyan government and KEPSA to establish a multi-stakeholder partnership framework between CSOs, the business community and anti-corruption agencies.

The existing push back platforms are facing financial constrain hence unable to undertake comprehensive measures to tackle corruption.

The existence of bureaucratic reporting structures and avenues that strain response to the fight against graft through delayed response and reluctance on call to action, have constantly discouraged women in middle level business to respond to the fight against graft. EACC maintains that their power to act is envisaged in external agencies such as the police, Director of Criminal Investigation and the Judiciary.

Overregulation - The existence of complex and costly business registration procedures that demands for corruption in the form of bribery, disproportionately affects female business owners as they are less likely to have the time, money, and contacts needed to navigate such requirements.

Female entrepreneurs, gendered experience and voices on corruption is completely missing out on national strategic response in the fight against corruption in Kenya, hence an urgent need to capture gendered experience in tackling corruption

Women in middle level business lose reputation when they speak out on their experiences in sextortion as a form of corruption. Speaking out attracts societal stigmatization leading to post traumatic effects to the victim hence opting for the path of silence.

Lack of a purely substantive women entrepreneurial push back platform that calls for government's accountability in the economic sector to protect the rights of women in the economic sector.

The existence of defunct laws to protect and safeguards to whistle-blowers.

Systemic corruption is thus a major hindrances to shared prosperity for women in middle level business, it shocks their conscious to whole-heartedly and collectively fights the graft.

Ray of hope

Opportunities for women don't come on a silver plate. They have to elbow their way to the table and assert their right to equal professional career and business opportunities. To some extent, this accounts for the rising number of mid-level businesswomen in Kenya, propped by a 2016 national policy for women empowerment. However, despite these modest strides, women still face huge obstacles, and according to the study 87.4% of women in middle level business within Nairobi County strongly belief that it is the endemic rise of systemic corruption that largely inhibits their greater participation in the economy.

Going by the various focus group discussions held by the study, the intractable challenges that women in middle level business have faced over time are a call to action more than ever by the women themselves. In view of the study findings women in middle level business better understand the complexities especially within the context of gender in the business sector.

Pegged on the focus group discussions held, the women proposed interventions and designed solutions that will then contribute to stopping barriers towards women realizing gender parity within the private sector augmenting to their civil, political, social, economic and cultural rights. The solutions suggested formed the basis of the recommendations to the study.

Cognizant of Sections 11 and 13 of the Ethics and Antic-corruption Commission Act, 2011, the study recognizes that the war against graft requires broad public support. Hence, as many networks as possible are required to collaborate in efforts to eradicate corruption through civic education and anti-corruption campaigns. And in almost every setup, women are central players – whether public or private sector, state or non-state actors, religious group or secular associations, public servants or self-employed, government or private companies, county or national governments, family or formal institutions.

Opportunities

The good political will and commitment by the Kenyan government to fight graft through a multi stakeholder approach under the EACC, through the stewardship of MSIAC, though riddled with challenges provides an avenue for women entrepreneurs to organize and be part of a coalition championing for the fight against graft.

The study noted that women in middle level businesses could be critical agents of change if up scaled to anti-corruption interventions at the county level through structured and systematic empowerment programs. They could be the moral force that propels Chapter 4 of the Kenya Constitution on ethics and integrity.

The ability of women in middle level business to leverage on the use of relevant digital tools and platforms as a means of flagging off acts bordering to corruption provides a ray of hope to the on going fight against corruption.

The increasing demand by women entrepreneurs under the Nairobi Women SME Think Tank to form a women's agency to champion for ethical business leadership standards within the country provides a ray of hope towards accountable governance, hinged on positive entrepreneurial attitudes with a quest of eliminating corruption, provides a ray of hope to the fight against graft.

The willing desire by women entrepreneur under the Nairobi Women SME Think Tank to collectively engage and contribute to the fight against graft within Kenya and across the region provides a call to action by the civil society organization and the donor community

The demand for an economic push back platform specifically tailored for the Nairobi Women through an SME Think Tank is an outright call for training and capacity building programs to equip the women entrepreneurs with proper advocacy skills and tools.

The proposal by the Nairobi Women SME Think Tank to conduct an anti corruption campaign dubbed “LIPA PALE” translating to don’t pay bribes but pay your fee to the right service channels provides a ray of hope to women entrepreneurs commitment to social change in the fight against unethical economic norms in Kenya.

Women are beginning to position themselves at the helm of the existing push back platforms such as at KEPSA where the CEO is a lady Ms. Carole Karuki whose key role has been to ensure an environment that encourages and supports all businesses, MSIAC coordinator under KEPSA in the fight against graft is also a Ms. Anne Katule, flanked by a Ms. Dean Kisuza as the liaison lead of MSIAC. At the Inter African Parliamentary Platform Against Corruption Hon. Rose Nyamunga chairs the parliamentary caucus group on the fight against graft within the African continent. All these are positive opportunities for mainstreaming the women’s leadership deficit into the fight against graft.

The existence and the thought of having a Multi Stakeholder Initiative involved in the fight against grafts provides a ray of hope into the fight against graft.

Emerging skills and tools available for Women in Middle Level business to leverage on corruption

The study through the various focus group discussions held was able to collate a number of skills and tools that the Nairobi women SME think tank group highlighted upon as sufficient contributors to the fight against graft.

Advocacy, protests, and petitions

Business community integrity camps and centers

Encouraging Women in middle level business to embrace the power of technology initiative in combating corruption by whistle blowing and raising alarms through digital platforms

Dynamic and continuous usage of the media, civil society, citizens and the academia in the quest to fight the systemic rise of systemic corruption in Kenya.

Keeping women in middle level business engaged and active in the fight against corruption

Alignment of anti-corruption measures with market behavioral social forces

Whistle blowing mechanism and measures of corrupt public officials and government agencies

Naming & shaming of corrupt institutions and individuals

Capacity building measures on the fight against graft

Citizens Report Cards specifically tailor made for the business community

Create a knowledge based portal on anti corruption models

Research and survey tools just like the one conducted by Citizen Advancement Initiative

The women SME think tank also re echoed on the need for regulatory reforms to address stringent policies and processes that create the opportunities for corruption within Nairobi County. Such reforms include reducing fees and taxes, simplifying procedures and requirements for registration, creating one-stop centers, and developing special registration programs for women in business. Such programs have succeeded in reducing corruption in Rwanda and the need for them to be replicated in Kenya.

The study was further quick to realize that the women in middle level business within Nairobi are yet to establish the use of relevant technologies, legal knowledge and technical skills, as well as policy forums, networks, platforms and groups (formal and informal) to enhance their voice against graft.

In addition to other empowerment initiatives, the Nairobi SME women think tank proposed the establishment an anti-corruption network platform completely different from MSIAC to lobby for women’s interests, and representation in the institutions charged with the responsibility against graft

in Kenya.

CHAPTER 5

Recommendations.

With the increasing influence of the private sector in the economic development of Kenya, and with the increasing participation of women in the social economic sphere especially within the private sector it then becomes imperative to engender women in middle level business to contribute to the fight against systemic corruption in Kenya through private sector alliances such as KEPSA, KNCC, Nairobi Business Community, and the Nairobi SME Think Tank that has a pool of women in middle level business.

Recommendations in respect to the knowledge, perceptions, attitudes and experiences gathered by the study points out to the following:

Regulatory approaches for Middle Level Business – Training on anti-corruption laws, institutional frameworks and reporting channels and procedures: where and how to file complaints. This will aid in reporting, investigating complaints and enforcing sanctions against corrupt institutions and public officials. Training could also include issues pertaining to taxation, licensing and legal requirements to ensure compliance by women businesses and reduce opportunities for corruption.

Study Organizational Recommendations.

From the foregoing, the study has identified the Nairobi Business Women SME Think Tank as a possible push back platform to engender and mainstream middle level businesswomen to thrive and combat systemic corruption through the following:

Mainstreaming for Middle Level women enterprises - Engendering women to combat corruption means having more women on the frontline of the anti graft fight. Empowerment will transform women into a potent force for good governance and business, hence disrupt systemic corruption.

Binary engagement and dialogue with government agencies – Enhance women's awareness of basic government regulations and enabling them to organize through such lobby groups as the Nairobi Women Business Think Tank. Establishing businesswomen's lobby and engagement in anti-corruption efforts will contribute to public probity and accountable governance systems that are more responsive to women's needs. This will prevent corruption in the financing and delivery of basic public services upon which women depend, eliminate gaps that take advantage of women's lack of knowledge of their rights, and empower them to protest their sexual exploitation and extortion.

Establish SME pressure group of women against corruption – This will produce whistleblowers to flag corrupt institutions and public officials. The pressure group will initiate strategic and sustainable anti graft awareness programs for women in business and the public generally. By developing a toolkit for strengthening and engendering women's participation in the fight against systemic corruption; organizing sensitization programs against systemic corruption; developing women-led advocacy programs drumming up public-sector reforms in favor of transparency and public accountability mechanisms.

Documentation – Profile a documentary of women campaigning against graft as part of public education for good corporate governance initiatives.

Focus Group Discussion Recommendations

A majority of the women in business whom attended the study focus group round discussions upheld to the following;

Since national and county government agencies are responsible for setting policy and regulating operations of small and medium enterprises, a majority of the women in business proposed capacity building support for women in middle level business to engage with authorities on policy and administrative hindrances to clean business.

Simplified registration programs for micro enterprises to spur growth for SMEs, and stand a chance to eliminate endemic systemic corruption particularly if digitalization is embraced. A simplified registration processes - including digitization to reduce human contact to reduce opportunities for corruption – can be a boon to SMEs.

CONCLUSION

This study set out to establish the how women in middle level business in Nairobi can be engaged in combating systemic corruption through good governance. The study draws lessons from previous societies where women have proven that they can play a key role in restoring order and justice to broken societies. The most recent case is Sudan where women activism was central in the ouster of long-serving dictator Omar el Bashir whose arrest revealed millions of looted funds.

In dire situations of civil war when communities have been driven to the brink of total collapse such as Rwanda and Sierra Leone, women have played a critical role in mediation and peace building that restored stability. This is an indicator that the fight against systemic corruption can benefit from women being in the frontline too.

However, placing women in the frontline of the anti-graft war must be founded on proper strategies so that they are not viewed as pawns in a tussle with the state. This has been cited in the case of women from Nairobi's informal settlements who are often improvised or paid by politicians or civil society groups to protest against political causes. Civil disobedience should be inspired by patriotism and clear conscientiousness, not inducement, which is in itself a form of corruption.

Hence, this study explored what role women in mid-level business, as a focused special interest group, can play in the fight against systemic corruption; how it impacts their livelihoods and business; the societal cost; and how eradicating corruption far exceeds the expected individual gains from participating in it.

In conclusion Citizen Advancement Initiative would provide appropriate technical support to the interventions proposed herein, capacity building, training and legal representation to bolster the business environment and combat systemic corruption to the Nairobi business women think tank.

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